

H C J D A 38
JUDGMENT SHEET
LAHORE HIGH COURT
MULTAN BENCH MULTAN
JUDICIAL DEPARTMENT

I.C.A.No.244/2024 in W.P.No.3373/2023.

Government of the Punjab through Chief Executive Officer/District Health Authority, Multan.

vs.

Zia Akram & others

J U D G M E N T

Date of hearing.	08.05.2025.
Appellant- Department by	Kanwar Sajid Ali, Assistant Advocate-General Punjab for the Punjab for the appellant alongwith Nauman Arshad, Litigation Officer, CEO (DHA), Multan.
Respondent No.1 by	Rao Muhammad Iqbal, Advocate for respondent No.1.

MALIK JAVID IQBAL WAINS, J.:- This Intra-Court Appeal under Section 3 of the Law Reforms Ordinance, 1972 arises out of order dated 08.10.2024, passed by learned Single Judge in Chambers in Writ Petition No.3373 of 2023, whereby the constitutional petition filed by respondent No.1 (hereinafter referred to as the “respondent”) was allowed by setting aside the impugned order dated 30.01.2023, passed by the Secretary, Primary & Secondary Healthcare Department, Lahore and directed the respondents to act upon the recommendations of the inquiry report (Annexure-B of the writ petition).

2. Brief facts necessary for the disposal of this Intra-Court Appeal are that, in pursuance of an advertisement published in a daily newspaper, the posts of School Health & Nutrition Supervisor were advertised by the Chief Executive Officer, District Health Authority, Multan. The respondent applied for the said post, but could not qualify for the post in question as he secured 41 out of 100 marks in the written

test, whereas, passing marks were 45. Being aggrieved, the respondent filed W.P.No.1604 of 2017, which was dismissed vide order dated 26.09.2018. That dismissal was challenged through I.C.A.No.325 of 2018, which was subsequently disposed of as not pressed vide order dated 18.10.2018, with a direction to respondent No.3 of that appeal to decide the matter after hearing the respondent and all other concerned parties, through a speaking order within one month. In compliance with the aforesaid direction, the respondent was called for a personal hearing on 16.11.2018 by the Convener of the Committee, who constituted a Committee to scrutinize the record regarding the appointment of School Health and Nutrition Supervisors and submitted its report. However, no action ensued, and the respondent was constrained to file W.P.No.9178 of 2018, which was disposed of vide order dated 08.08.2019, directing the Secretary (Health) to issue an appointment letter to the respondent. The appellant-department challenged the said order by filing I.C.A.No.359 of 2019, which was disposed of by this Court vide order dated 25.09.2019 with a direction to the Secretary, Primary & Secondary Healthcare Department, Lahore, to treat the respondent's constitutional petition (W.P.No.9178 of 2018) as his representation. In compliance with the said direction, the Secretary concerned rejected the representation of the respondent vide order dated 17.10.2019. This order was called into question through the filing of W.P.No.16837 of 2019, which was disposed of vide order dated 22.11.2022, directing the Secretary concerned to treat the said writ petition as a representation and redress the respondent's grievance through a speaking order. The appellant-department challenged this order through I.C.A.No.328 of 2022, which was dismissed in limine on 13.12.2022. However, in compliance with the order dated 22.11.2022, the Secretary, Primary & Secondary Healthcare Department, once again rejected the respondent's representation vide order dated 30.01.2023, which was challenged by the respondent by filing W.P.No.3373 of 2023 and the same was allowed by the learned Single Judge-in-Chambers in terms of order dated 08.10.2024. The

appellant-Department being aggrieved has preferred this intra-court appeal before this Court.

3. We have heard the learned Law Officer as well as the learned counsel for respondent No.1 at length and have carefully examined the available record.

4. The recruitment process in the instant matter commenced with the publication of an advertisement for the posts of School Health & Nutrition Supervisors, pursuant to which a written test was held on 23.08.2016 at Civil Lines College, Multan. The District Recruitment Committee fixed a minimum qualifying benchmark of 45 marks out of 100 for eligibility. As per the record, the respondent secured only 41 marks in the written test, thereby falling short of the prescribed threshold. The record further reveals that all candidates, including the present respondent, appeared before the District Recruitment Committee. Only those candidates, who secured the minimum qualifying marks were considered for further processing. Eighteen such candidates, who met the prescribed criteria, were appointed under the law. The respondent, having not qualified in the written test, was rightly excluded from consideration.

5. The first and foremost issue that arises for determination is whether respondent, having secured less than the qualifying marks, could claim any legal entitlement to appointment. It is an admitted position that the respondent obtained only 41 out of 100 marks in the written examination, whereas the qualifying threshold was 45. Thus, by objective criteria, the respondent failed to qualify for appointment.

6. The second issue pertains to the inquiry proceedings initiated by the Chief Executive Officer (DHA), Multan, in purported compliance with this Court's earlier directions dated 18.10.2018 in W.P.No.1604/2017 titled "Zaki Akram, etc. vs. Government of Punjab". The said inquiry committee, however, did not assess or review the respondent's performance in the written examination. Rather, the committee limited its observations to general procedural aspects of the

overall recruitment process. Despite the respondent's failure to meet the eligibility criteria, the committee recommended his case for consideration by the competent authority just to avoid litigation, an act clearly beyond its mandate and jurisdiction.

7. It is settled law that no candidate can claim appointment as a matter of right without meeting the eligibility criteria prescribed by the recruiting authority. Recommendations made without evaluating the respondent's failure to qualify in the written examination do not confer any vested right. The act of making such recommendation, without the backing of merit, cannot override statutory rules or established recruitment procedures.

8. The impugned speaking order dated 30.01.2023, passed by the Secretary, Primary & Secondary Healthcare Department, rightly rejected the respondent's representation on two cogent and well-reasoned grounds, (i) that the respondent had failed to attain the prescribed minimum qualifying marks in the written examination, thereby rendering himself ineligible for further consideration in the recruitment process, and (ii) that the Chief Executive Officer (DHA), Multan, neither had any statutory authority to deal with the matter concerning the petitioner nor was vested with the power to constitute an inquiry committee or issue any recommendations regarding appointments, such powers being exclusively conferred upon the Competent Appointing Authority under the relevant service and recruitment rules.

9. The rationale provided in the impugned speaking order is not only plausible but is firmly grounded in legal norms governing public appointments. It is a settled principle of law that public employment must be governed by objective standards of eligibility and merit, as laid down in the relevant service rules or recruitment policy. Deviation from such norms, or relaxation of qualifying criteria in an arbitrary or unauthorized manner, is impermissible under Articles 4 and 25 of the Constitution, which guarantee equality before law and protection from arbitrary action.

The respondent, having admittedly failed to secure the minimum qualifying marks, cannot claim any right to be considered for appointment. The recommendations made by an unauthorized committee, constituted without lawful authority, have no binding legal effect and cannot override statutory requirements. Mere recommendation for consideration, absent compliance with mandatory eligibility conditions, does not confer any enforceable right, nor does it create a legitimate expectation in the eyes of law. Furthermore, the persistent litigation undertaken by respondent No.1, despite successive orders reaffirming the need to adhere to prescribed qualifications, appears to be an attempt to circumvent the established recruitment framework. Courts have consistently held that litigation, which seeks to bypass merit-based selection through procedural tactics amounts to an abuse of the process of law and must be discouraged that no appointment can be made in contravention of statutory rules, and no equitable relief can be granted, where the claim itself is devoid of legal foundation. Reliance is placed on GOVERNMENT of BALOCHISTAN through Additional Chief Secretary Development, P&D Department, Quetta and another vs. MUHAMMAD AKHTAR and others (2025 SCMR 656), wherein it has been held as under:-

“5. Heard the arguments. The exercise of recruitment is an onerous and conscientious duty, and if it is assigned to a person or committee, they are obligated to conduct the process fairly and squarely and according to the mandate given by the recruitment agency/ department to recommend suitable candidates for filling up the vacant positions/posts advertised for applications by interested candidates. The Selection/Recruitment Committee cannot travel beyond its mandate”.

Therefore, we find that the rejection of the respondent's claim through the impugned speaking order was entirely in consonance with law, factually correct, procedurally sound, and in full compliance with the principles of transparency, merit, and lawful authority governing public service appointments.

10. We further find that the learned Single Judge ought to appreciate the factual and legal aspects of the case in their true perspective. This omission led to an incorrect conclusion, resulting in the impugned order being passed in disregard of established legal principles. The discretion exercised by the Appointing Authority/Secretary, Primary & Secondary Healthcare Department, in rejecting the respondent's representation, was lawful and in line with the mandate of the relevant recruitment rules. We find no justification to interfere with the legitimate exercise of jurisdiction by the departmental authorities.

11. It is a settled law that the High Court, while exercising constitutional jurisdiction under Article 199 of the Constitution, is not expected to act as a selection or appointing authority so as to substitute its own assessment for that of the competent body. This principle was underscored by the Hon'ble Supreme Court in Dr. MIR ALAM JAN vs. Dr. MUHAMMAD SHAHZAD and others (2008 SCMR 960), wherein it was held that:-

"In exercise of constitutional jurisdiction, the High Court was not expected to perform the functions of a Selection Authority in service matters so as to substitute its opinion for that of a competent authority."

12. In view of the above discussion and legal analysis, this Intra-Court Appeal is allowed. The order dated 08.10.2024 passed by the learned Single Judge in W.P.No.3373 of 2023 is hereby set aside, and the writ petition filed by respondent is accordingly dismissed. There shall be no order as to costs.

(AHMAD NADEEM ARSHAD)
JUDGE

(MALIK JAVID IQBAL WAINS)
JUDGE

Approved for reporting.

JUDGE

JUDGE

Announced in open Court on 16.06.2025.

JUDGE

JUDGE

M.AYYUB